

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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NICHOLAS THOMMEN and CHANNING CREAGER,

Plaintiffs,

-against-

CITY OF NEW YORK, SEAN TRENTACOSTA, Individually,
JOHN PATRICK HARRIGAN, Individually,

Defendants.

**AMENDED
COMPLAINT**

15 CV 5797 (BMC)

Jury Trial Demanded

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Plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER, by their attorneys, the
Leventhal Law Group, P.C., complaining of the defendants, respectfully allege as follows:

Preliminary Statement

1. Plaintiffs bring this action for compensatory damages, punitive damages and attorneys' fees pursuant to 42 U.S.C. and §§ 1983 and 1988, for violations of their civil rights, as said rights are secured by said statutes and the Constitution of the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the First, Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is found upon 28 U.S.C. §§1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under 28 U.S.C. § 1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiffs respectfully demand a trial by jury of all issues in this matter pursuant to

Fed. R. Civ. P. 38 (b).

PARTIES

6. Plaintiff NICHOLAS THOMMEN is a thirty-three year old man residing in Detroit, Michigan.

7. Plaintiff CHANNING CREAGER is a twenty-six year old woman residing in Brooklyn, New York.

8. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

9. Defendant CITY OF NEW YORK maintains the New York City Police Department (hereinafter referred to as “NYPD”), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, CITY OF NEW YORK.

10. That at all times hereinafter mentioned, the individually named defendants, SEAN TRENTACOSTA and JOHN PATRICK HARRIGAN, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

11. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

FACTS

13. On June 27, 2013, at approximately 10:50 p.m., plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER were lawful passengers on an “E” subway train traveling from Manhattan to Queens, New York. At the time of the incident, the train was located in the vicinity of Broadway and Roosevelt Avenue, Queens, New York.

14. At said date and time, THOMMEN and CREAGER observed defendant NYPD officers SEAN TRENTACOSTA and JOHN PATRICK HARRIGAN, who were in uniform and on said subway train.

15. THOMMEN and CREAGER gestured toward TRENTACOSTA and HARRIGAN with their middle finger raised, an internationally recognized symbol of dislike and/or displeasure, and in so doing exercised their constitutional right, guaranteed under the State and Federal Constitutions, to peacefully express themselves.

16. Shortly thereafter, when the subway train stopped at the Broadway and Roosevelt Avenue subway station, TRENTACOSTA and HARRIGAN ordered THOMMEN and CREAGER to get off the train. THOMMEN and CREAGER complied with the defendants’ orders and exited the train.

17. After exiting the train, TRENTACOSTA and HARRIGAN requested that THOMMEN and CREAGER produce their identifications and plaintiffs complied. One of the defendants then ran a background check of plaintiffs.

18. Approximately five minutes after THOMMEN and CREAGER exited the train, TRENTACOSTA and HARRIGAN received the results of the background check and one of the defendants stated to THOMMEN, in sum and substance, you have a prior case for assaulting a police officer. TRENTACOSTA and HARRIGAN then handcuffed THOMMEN and

CREAGER, imprisoned them in a police vehicle, and transported them to the NYPD's 110th police precinct station house in Queens, New York.

19. While imprisoned at the 110th precinct, NYPD officers searched, fingerprinted, and photographed THOMMEN and CREAGER, and imprisoned them in a holding cell.

20. The defendant officers continued to imprison THOMMEN and CREAGER until June 28, 2013, when plaintiffs were arraigned on baseless charges of Disorderly Conduct (P.L. § 240.20 (2)), filed in Queens County Criminal Court under docket numbers 2013QN035466 and 2013QN035465; said charges having been filed based on the false allegations of defendant HARRIGAN. The defendants initiated said prosecutions with malice, and otherwise caused said prosecutions to be commenced against plaintiffs for the purpose of obtaining a collateral objective outside the legitimate ends of the legal process, to wit: to avoid discipline for their abuse of authority and their unconstitutional, malicious, and false arrest of plaintiffs, and in retaliation for plaintiffs' lawful exercise of their constitutional right to freedom of speech and expression.

21. TRENTACOSTA and HARRIGAN conspired to create and manufacture false evidence against plaintiffs and to forward said evidence to the Queens County District Attorney's Office. HARRIGAN conveyed said evidence to the Queens County District Attorney's Office causing said evidence to be used against THOMMEN and CREAGER in the aforementioned legal proceeding. Specifically, HARRIGAN swore to false allegations that THOMMEN and CREAGER were shouting and making unreasonable noise causing people to leave the area to avoid plaintiffs. HARRIGAN also swore to false allegations that THOMMEN was shouting that police are "all fucking rapists," and that CREAGER was shouting "fuck these cops man." All of the sworn allegations of the defendants described herein are entirely false.

22. On June 28, 2013, all of the false charges filed against THOMMEN and CREAGER were adjourned in contemplation of dismissal and subsequently dismissed and sealed.

23. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the CITY OF NEW YORK, including, without limitation, a practice of falsification, the inadequate screening, hiring, retaining, training, and supervising of its employees, and due to a practice of arresting individuals in retaliation for their exercise of their right to freedom of speech and expression.

24. The aforesaid event is not an isolated incident. Defendant CITY OF NEW YORK is aware (from lawsuits, notices of claims, and complaints filed with the NYPD's Internal Affairs Bureau, and the CITY OF NEW YORK'S Civilian Complaint Review Board) that many NYPD officers, including the defendants, are insufficiently trained regarding a citizen's right to the lawful exercise of their right to free speech and expression, and that they otherwise engage in a practice of falsification.

25. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the CITY OF NEW YORK, including, without limitation, the inadequate screening, hiring, retaining, training, and supervising of its employees, and due to a custom, policy, and/or practice of: arresting individuals in retaliation for their lawful exercise of their right to freedom of speech and expression; manufacturing false evidence against individuals in a conspiracy to justify their false arrest of individuals; arresting innocent persons in order to meet "productivity goals" (i.e. arrest quotas); arresting individuals for professional advancement, overtime compensation, and/or other objectives outside the ends of justice; and/or falsely arresting individuals and engaging in a practice of falsification in an attempt to justify the false

arrest.

26. The aforesaid event is not an isolated incident. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct as documented in civil rights actions filed in the United States District Courts in the Southern and Eastern Districts of New York as well as in New York State courts. As a result, defendant CITY OF NEW YORK is aware (from said lawsuits as well as notices of claims, and complaints filed with the NYPD's Internal Affairs Bureau, and the CITY OF NEW YORK'S Civilian Complaint Review Board) that many NYPD officers, including the defendants: arrest individuals in retaliation for their lawful exercise of their right to freedom of speech and expression; manufacture false evidence against individuals in a conspiracy to justify the arrests of innocent persons in order to meet "productivity goals" (i.e. arrest quotas); arrest individuals for professional advancement, overtime compensation, and/or other objectives outside the ends of justice; and/or falsely arrest individuals and engage in a practice of falsification in an attempt to justify the false arrest.

27. Defendant CITY OF NEW YORK is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, defendant CITY OF NEW YORK has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiffs' civil rights.

28. In addition, in another civil rights action filed in this court involving false allegations of involvement in a narcotics transaction by NYPD officers, United States District Judge Jack B. Weinstein pronounced:

Informal inquiry by the court and among judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification

by arresting police officers of the New York City Police Department. . . . [T]here is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or police by the city approving illegal conduct of the kind now charged.

Colon v. City of New York, et. al., 2009 WL 4263362, *2 (E.D.N.Y.).

29. Moreover, the existence of the aforesaid unconstitutional customs and policies may further be inferred from the admission by former NYPD Deputy Commissioner Paul J. Browne, as reported by the media on January 20, 2006, that NYPD commanders are permitted to set “productivity goals.”

30. Moreover, upon information and belief, defendant CITY OF NEW YORK was aware, prior to the incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, defendant CITY of NEW YORK has retained these officers, and failed to adequately train and supervise them.

31. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of state law.

32. All of the aforementioned acts deprived plaintiffs THOMMEN and CREAGER, of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

33. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto, and with the intent to retaliate against THOMMEN and CREAGER for their free expression of their Constitutionally protected right to free speech.

34. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

35. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

36. As a result of the foregoing, plaintiffs THOMMEN and CREAGER sustained, *inter alia*, emotional distress, embarrassment, humiliation, and deprivation of their liberty and constitutional rights.

37. As a result of the foregoing, plaintiffs THOMMEN and CREAGER are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A FIRST CAUSE OF ACTION
(False Arrest/Unlawful Imprisonment under 42 U.S.C. § 1983)

38. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "37" with the same force and effect as if fully set forth herein.

39. Defendants arrested plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER without probable cause, causing them to be detained against their will for an extended period of time and subjected to physical restraints.

40. Defendants caused plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER to be falsely arrested and unlawfully imprisoned.

41. As a result of the foregoing, plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION
(Violation of Right to Fair Trial under 42 U.S.C. § 1983)

42. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "41" with the same force and effect as if fully set forth herein.

43. Defendants created false evidence against plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER.

44. Defendants utilized this false evidence against plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER in legal proceedings.

45. As a result of defendants' creation and use of false evidence, plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER suffered a violation of their constitutional rights to a fair trial, as guaranteed by the United States Constitution.

46. As a result of the foregoing, plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION
(First Amendment Claim under 42 U.S.C. § 1983)

47. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "46" with the same force and effect as if fully set forth herein.

48. The acts of the defendant officers were in retaliation for plaintiffs' exercise of

their First Amendment freedom of speech and expression, and not in response to any unlawful acts of the plaintiff.

49. As a result of the aforementioned conduct of defendants, plaintiffs were subjected to retaliation for the exercise of their First Amendment rights.

50. As a result of the foregoing, plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION
(Malicious Abuse of Process under 42 U.S.C. § 1983)

51. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "50" with the same force and effect as if fully set forth herein.

52. Defendants maliciously issued criminal process against plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER by causing them to appear in Queens County Criminal Court.

53. Defendants caused plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER to appear in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit: to avoid discipline for their unlawful conduct.

54. As a result of the foregoing plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983)

55. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered “1” through “54” with the same force and effect as if fully set forth herein.

56. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

57. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York Police Department included, but were not limited to: arresting individuals in retaliation for their lawful exercise of their right to freedom of speech and expression; manufacturing false evidence against individuals in a conspiracy to justify their false arrest of individuals; arresting innocent persons in order to meet “productivity goals” (i.e. arrest quotas); arresting individuals for professional advancement, overtime compensation, and/or other objectives outside the ends of justice; and/or falsely arresting individuals and engaging in a practice of falsification in an attempt to justify the false arrest.

58. In addition, the City of New York engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training and supervising its employees that was the moving force behind the violation of plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER’S rights as described herein. As a result of the failure of the City of New York to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

59. The foregoing customs, policies, usages, practices, procedures and rules of the

City of New York and the New York Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER.

60. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER as alleged herein.

61. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER as alleged herein.

62. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER were detained, imprisoned, and prosecuted without probable cause.

63. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER'S constitutional rights.

64. All of the foregoing acts by defendants deprived plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;

- C. To be free from malicious abuse of process;
- D. To be free from retaliation for the exercise of their First Amendment rights; and
- E. To be free from deprivation of their right to a fair trial.

65. As a result of the foregoing, plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

WHEREFORE, plaintiffs NICHOLAS THOMMEN and CHANNING CREAGER demand judgment and pray for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages against the individual defendants in an amount to be determined by a jury;
- (C) reasonable attorneys' fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper.

Dated: Brooklyn, New York
December 1, 2015

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UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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NICHOLAS THOMMEN and CHANNING CREAGER,

Plaintiffs,

15 CV 5797 (BMC)

-against-

CITY OF NEW YORK, SEAN TRENTACOSTA, Individually,
JOHN PATRICK HARRIGAN, Individually,

Defendants.

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AMENDED COMPLAINT

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